

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jessica Welker	Team: Team # 4	CCRB Case #: 201110375	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Monday, 07/18/2011 9:30 PM	Location of Incident: § 87(2)(b) between § 87(2)(b) and § 87(2)(b)	18 Mo. SOL 1/18/2013	Precinct: 83		
Date/Time CV Reported Wed, 08/10/2011 3:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/10/2011 3:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Derek Almeida	25236	946426	083 PCT
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Derek Almeida	Abuse: PO Derek Almeida stopped § 87(2)(b)	A . Complainant Uncooperative
B . POM Derek Almeida	Abuse: PO Derek Almeida searched § 87(2)(b)	B . Complainant Uncooperative
C . An officer	Abuse: An officer strip-searched § 87(2)(b)	C . Complainant Uncooperative
D . An officer	Abuse: An officer searched § 87(2)(b)	D . Complainant Uncooperative
E . An officer	Force: An officer used physical force against § 87(2)(b)	E . Complainant Uncooperative
F . POM Derek Almeida	Force: PO Derek Almeida used physical force against § 87(2)(b)	F . Complainant Uncooperative

Case Summary

On August 10, 2011, § 87(2)(b) called the CCRB and filed a complaint over the phone. On July 18, 2011, at approximately 9:30 a.m., PO Derek Almeida of the 83rd Precinct stopped § 87(2)(b) at § 87(2)(b) between § 87(2)(b) and § 87(2)(b) in Brooklyn (Allegation A). PO Almeida searched § 87(2)(b)'s pockets and then released him (Allegation B). As § 87(2)(b) walked away, an unmarked vehicle pulled up. An unidentified officer called § 87(2)(b) to come back. Three unidentified officers surrounded § 87(2)(b) and an unidentified officer instructed him to take his pants off (Allegation C). § 87(2)(b) complied and stood with his back towards the officers on the sidewalk and placed his hands on the hood of an unmarked vehicle. An unidentified officer searched the band of § 87(2)(b)'s underwear (Allegation D). The officer pulled the underwear away from § 87(2)(b)'s body and looked into his underwear (Allegation C). The officer then instructed § 87(2)(b) to take off his shoes, which he did. A bag of cocaine was found in his right shoe. An unidentified officer grabbed § 87(2)(b) by his neck and PO Almeida grabbed his right arm and placed it behind his back (Allegation E). PO Almeida and an unidentified officer punched § 87(2)(b) in his right side (Allegation E and Allegation F). § 87(2)(b) scraped his knees when he fell to the ground due to the officers punching him. § 87(2)(b) was taken to the 83rd Precinct stationhouse and then to § 87(2)(b). § 87(2)(b) was arrested and charged with § 87(2)(b).

§ 87(2)(b) identified PO Almeida of the 83rd Precinct by his shield. PO Derek Almeida was § 87(2)(b)'s arresting officer. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

As of September 13, 2011, Office of Court Administration records reveal that § 87(2)(b) is currently not incarcerated. On August 19, 2011, § 87(2)(b) missed his scheduled interview with the CCRB. He did not call to cancel or reschedule his interview. On August 26, 2011, a missed appointment letter was sent to him. Between August 26, 2011, and September 2, 2011, the CCRB called § 87(2)(b) three times and left messages asking to please call back. A final please call letter was sent to § 87(2)(b) on August 30, 2011. § 87(2)(b) has not responded to the CCRB, nor were the letters returned to the CCRB. It is therefore recommended that this case be closed as complainant uncooperative.

Team: _____

Investigator: _____
Signature _____ Print _____ Date _____

Supervisor: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____
Title/Signature _____ Print _____ Date _____

Reviewer: _____

Title/Signature

Print

Date